COMMERCIAL GENERAL LIABILITY INSURANCE POLICY

NOTICES:

This policy is issued by a Risk Retention Group (RRG). A Risk Retention Group is a state-chartered insurance company that enjoys certain federal preemptions under the Liability Risk Retention Act (15 U.S.C. §3901 et seq.). As such, it is not subject to all the insurance laws and regulations of your state. State insurance insolvency guaranty funds are not available for your risk retention group.

THIS IS AN OCCURRENCE-BASED LIABILITY COVERAGE FORM. It provides coverage for Bodily Injury, Property Damage, and Personal and Advertising Injury that occurs during the Policy Period and within the Coverage Territory. Coverage applies only to injury or damage that occurs during the Policy Period, regardless of when a claim or suit is made. Defense Costs are provided for covered Claims and are subject to all terms, conditions, exclusions, and limits of this Policy. Please read the entire Policy carefully.

In consideration of the payment of the premium, and in reliance upon the statements made in the Application, which is incorporated into and forms a part of this **Policy**, and subject to all of the terms, conditions, exclusions, and endorsements contained herein, the **Insurer** named in the **Declarations** and the **Insured** agree as follows:

This Policy is a binding legal agreement between the Insured (referred to herein as "You" or "Your") and the Insurer (referred to herein as "We," "Us," or "Our"). This Policy is issued in accordance with the terms stated below.

SECTION I: INSURING AGREEMENTS

A. **Coverage A – Bodily Injury and Property Damage Liability**
We agree to pay **Damages** an **Insured** must legally pay by reason of **Bodily Injury** or **Property Damage** covered by this **Policy**, provided the injury or damage is caused by an **Occurrence** during the **Policy Period** and within the **Coverage Territory**. We have the right and the duty to defend a **Claim** seeking such **Damages**, but no duty to defend any matter not covered under this **Policy**. Our defense obligation ends once the applicable **Limit of Liability** is exhausted by payments under this **Policy**.

B. **Coverage B – Personal and Advertising Injury Liability**
We will pay **Damages** that an **Insured** is legally obligated to pay because of **Personal and Advertising Injury** caused by an offense arising out of your business, committed within the **Coverage Territory** during the **Policy Period**. We will defend any **Claim** seeking such **Damages**. We have no duty to defend matters not covered by this **Policy**. Our duty to defend ends when the applicable **Limit of Liability** is exhausted by payments under this **Policy**.

We will pay **Damages** an **Insured** must legally pay by reason of **Personal** and **Advertising Injury** covered by this **Policy,** provided the injury is caused by an **Occurrence** during the **Policy Period** and within the **Coverage Territory**. We have the right and the duty to defend a **Claim** seeking such **Damages**, but no duty to defend any matter not covered under this **Policy**. Our defense obligation ends once the applicable **Limit of Liability** is exhausted by payments under this **Policy**.

C. **Coverage C – Medical Expenses** (Medical Payments Liability Benefit)
We will pay reasonable expenses for medical and funeral services because of **Bodily Injury** caused by an accident on premises you own or rent or arising from your operations, provided the accident occurs within the **Coverage Territory** during the **Policy Period** and expenses are incurred and reported within one year. The injured person must submit to examinations we reasonably request, at our expense. Payments may include first aid at the time of the accident; necessary medical, surgical, X-ray, and dental services, including prosthetics; necessary ambulance, hospital, and professional nursing services; and funeral services.

SECTION II: DEFINITIONS

For purposes of this Policy, the following terms have the meanings set forth below. (Any word shown in **bold** in this Policy is a defined term.)

A. **Advertisement** means a notice about your goods, products, or services that is published or broadcast to the public or a target market for the purpose of attracting customers or

supporters. Material appearing on the Internet or similar electronic media qualifies. Only those portions of a website devoted to such promotion are an Advertisement.

B. **Auto** means a land motor vehicle, trailer, or semitrailer designed for travel on public roads, including any attached machinery or equipment, and any other land vehicle that is subject to a compulsory financial responsibility or motor vehicle insurance law in the place where it is licensed or principally garaged. **Auto** does not include **Worksite Equipment**.

C. **Bodily Injury** means physical harm, sickness, or disease sustained by a person, and includes death resulting at any time.

D. **Claim** means: (1) a written demand or suit seeking monetary damages or other civil relief from an Insured for an injury or offense covered by this Policy; or (2) a civil proceeding (including any arbitration or other alternative dispute resolution proceeding) commenced by the service of a complaint, filing of a notice of charges, or similar pleading against an Insured, in which Damages because of Bodily Injury, Property Damage, or Personal and Advertising Injury to which this insurance applies are alleged.

E. **Coverage Territory** means: (1) The United States of America (including its territories and possessions), Puerto Rico, and Canada; (2) International waters or airspace, but only if the Bodily Injury or Property Damage occurs in the course of travel or transportation between any places included in (1) above; (3) All other parts of the world, if the Bodily Injury or Property Damage arises out of goods or products made or sold by you in the territory described in (1) above, or arises out of the activities of an Insured person whose home is in the territory described in (1) above but is away for a short time on your business, or arises out of **Personal and Advertising Injury** offenses that take place through the Internet or similar electronic means of communication; **provided that** the Insured's responsibility to pay Damages is determined in a civil action on the merits in the territory described in (1) above, or in a settlement to which we have agreed.

F. **Change in Control** means, with respect to the Named Insured, any transaction or event by which any person or entity, or group acting in concert, directly or indirectly obtains the power to direct or cause the direction of the management or policies of the Named Insured, including by:

1. the acquisition of more than fifty percent (50%) of the outstanding voting securities of the Named Insured;

2. the right to appoint or elect a majority of the members of the board of directors, managers, or other governing body of the Named Insured;

3. contractual, voting, or other arrangements conferring majority voting control or equivalent decisive control;

4. the consolidation or merger of the Named Insured with or into another organization such that the Named Insured is not the surviving entity or becomes a subsidiary;

5. the sale, transfer, lease, or other disposition of all or substantially all of the assets of the Named Insured; or

6. the appointment of a receiver, conservator, liquidator, or trustee for the Named Insured, or the Named Insured becoming a debtor-in-possession.

G. **Damages** means compensatory monetary amounts (including judgments, awards and settlements) that an Insured is legally obligated to pay as compensation for a covered loss. **Damages** do not include fines, penalties, taxes, or matters deemed uninsurable by law, nor do they include **Defense Costs**.

H. **Defense Costs** means reasonable and necessary legal fees and expenses incurred in the investigation, defense, or appeal of a Claim. **Defense Costs** do not include the salaries, overhead, or other internal costs of the Insured or the Company.

I. **Employee** means a natural person whose labor or service is, was, or will be directed by the Named Insured, including full-time and part-time workers. Leased, Volunteer or Temporary workers are not Employees.

1. **Leased Worker** means a person leased to the Named Insured by a labor-leasing firm under an agreement to perform duties related to the conduct of their business.

2. **Temporary Worker** means a person who is furnished to the Named Insured to substitute for a permanent employee on leave or to meet **seasonal or short-term** workload conditions.

3. **Volunteer Worker** means a person who is not an employee, who donates their work, and who acts at the direction of and within the scope of duties determined by the Named Insured, **without remuneration** other than expense reimbursements or a nominal stipend.

J. **Executive Officer** means a person holding any officer position created by your charter, constitution, bylaws or any other similar governing document of an organization.

K. **Hostile Fire** means a fire which becomes uncontrollable or breaks out from where it was intended to be.

L. **Impaired Property** means tangible property, other than **Your Product** or **Your Work**, that cannot be used or is less useful because: (1) it incorporates **Your Product** or **Your Work** that is known or thought to be defective, deficient, inadequate or dangerous; or (2) you have failed to fulfill the terms of a contract or agreement; **if** such property can be restored to use by the repair, replacement, adjustment, or removal of **Your Product** or **Your Work** or by your fulfilling the terms of the contract or agreement.

M. **Insured** means the **Named Insured** and any other person or entity qualifying as an insured in **Section V – Notices and Conditions, Paragraph 9 (Separation of Insureds and Named Insured Provisions)** or as set forth below. The **Named Insured** means the person(s) or organization(s) designated in the Declarations as such. The following persons or organizations are also Insureds under this Policy, subject to the provisions of this Policy:

1. If you are designated in the Declarations as an individual, you and your spouse are Insureds, but only with respect to the conduct of your business of which you are the sole owner.

2. If you are designated as a partnership or joint venture, you are an Insured. Your members, partners, and their spouses are also Insureds, but only with respect to the conduct of your business.

3. If you are designated as a limited liability company, you are an Insured. Your members are Insureds, but only with respect to the conduct of your business. Your managers are Insureds, but only with respect to their duties as your managers.

4. If you are designated as an organization other than a partnership, joint venture, or LLC (such as a corporation), you are an Insured. Your executive officers and directors are Insureds, but only with respect to their duties as your officers or directors. Your stockholders are Insureds, but only with respect to their liability as stockholders of your company.

5. Any person or organization legally responsible for the operation of an **Auto** owned or leased by you (the Named Insured) or on your behalf is an Insured, but only with respect to liability arising out of the use of that Auto, and only if that person or organization has no other valid insurance for that liability. This provision does not apply to any person or organization using or responsible for the operation of an Auto in the business of selling, servicing, repairing, parking or storing Autos, unless such business is yours.

6. Any organization you newly acquire or form during the Policy Period (other than a partnership, joint venture or LLC) over which you maintain majority ownership or interest will qualify as a Named Insured, but only until the 30th day after acquisition or formation (or until the end of the Policy Period, if sooner), **provided that** no other similar liability insurance is available to that organization. Bodily Injury or Property Damage will not be covered under this provision if it occurred before you acquired or formed the organization, and Personal and Advertising Injury will not be covered if arising out of an offense committed before you acquired or formed the organization.

7. No person or organization is an Insured with respect to the conduct of any current or past partnership, joint venture, or limited liability company that is not shown as a Named Insured in the Declarations.

N. **Insured Contract** means:

1. A contract for a lease of premises. However, that portion of the contract that indemnifies any person or organization for damage by fire to premises rented to you or temporarily occupied by you is not an Insured Contract;

2. A sidetrack agreement;

3. An easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;

4. An obligation, required by ordinance, to indemnify a municipality (except in connection with work for a municipality);

5. An elevator maintenance agreement;

6. That part of any other contract or agreement pertaining to your business under which you assume the tort liability of another party for Bodily Injury or Property Damage to a third person or organization. **Tort liability** means a liability that would be imposed by law in the absence of any contract or agreement. **However, the following are not Insured Contracts under this definition:**

    a. That part of any contract or agreement that indemnifies a railroad for Bodily Injury or Property Damage arising out of construction or demolition operations within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;

    b. That part of any contract or agreement that indemnifies an architect, engineer or surveyor for injury or damage arising out of preparing, approving, or failing to prepare or approve maps, drawings, opinions, reports, surveys, change orders, designs or specifications, or giving directions or instructions (or failing to) if that is the primary cause of the injury or damage;

    c. That part of any contract or agreement under which the Insured, if an architect, engineer or surveyor, assumes liability for injury or damage arising out of the Insured's rendering or failure to render professional services, including those listed in b. above and supervisory or inspection services.

O. **Worksite Equipment** means a land vehicle, including any attached machinery or equipment, that meets any of the following:

1. It is designed for off-road use, such as tracked or industrial vehicles, or it is maintained for use only on premises you own or rent or on ways next to those premises.

2. It is maintained mainly to provide mobility to permanently mounted equipment or to perform a specialized task other than transporting persons or cargo.

3. It is otherwise a vehicle not intended for regular travel on public roads.

The following are **Autos** and not **Worksite Equipment**:

a. Any land vehicle designed for or used in travel on public roads.
b. Any self-propelled platform or device mounted on, integrated with, or operated from an automobile or truck chassis.
c. Any autonomous or remotely operated ground device when operated on public roads or under a motor vehicle licensing or permitting scheme.

In all events, a land vehicle subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the jurisdiction where it is licensed or principally garaged will be treated as an **Auto**.

P. **Occurrence** means an accident, including continuous or repeated exposure to substantially the same general conditions.

Q. **Personal and Advertising Injury** means injury, including consequential Bodily Injury, arising out of one or more of the following offenses: False arrest, detention, or imprisonment, malicious prosecution, wrongful eviction, wrongful entry, or invasion of the right of private occupancy of premises a person occupies, when committed by or for the owner, landlord, or lessor., publication, in any manner, of material that slanders or libels a person or organization, or that disparages their goods, products, or services, publication, in any manner, of material that violates a person's right of privacy, use of another's advertising idea in your **Advertisement**, or the infringement of copyright, trade dress, or slogan in your **Advertisement**.

R. **Pollutants** means any solid, liquid, gaseous, or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, and waste. **Waste** includes materials to be recycled, reconditioned or reclaimed.

S. **Products-Completed Operations Hazard** includes all Bodily Injury and Property Damage occurring away from premises you own or rent and arising out of **Your Product** or **Your Work**, except: (1) products that are still in your physical possession; or (2) work that has not yet been completed or abandoned. **Your Work** will be deemed completed at the earliest of: (a) when all of the work called for in your contract has been completed; (b) when all of the work to be done at a job site has been completed if your contract calls for work at more than one site; or (c) when that part of the work at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project. Work that is otherwise complete will be treated as completed even if it requires service, maintenance, correction, repair, or replacement. **However, the Products-Completed Operations Hazard does not include:** (i) Bodily Injury or Property Damage arising out of the transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you and that condition was created by the **Loading or Unloading** of that vehicle by an Insured; (ii) the existence of tools, uninstalled equipment or abandoned or unused materials; or (iii) products or operations for which the Declarations indicate a **General Aggregate Limit** (rather than a Products-Completed Operations Aggregate) applies.

T. **Property Damage** means: (1) physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or (2) loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the Occurrence that caused it. **For the purposes of this insurance, electronic data is not tangible property.** (Electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media used with electronically controlled equipment.)

U. **Suit** means a civil proceeding in which Damages because of Bodily Injury, Property Damage, or Personal and Advertising Injury to which this insurance applies are alleged. **Suit** includes any arbitration or other alternative dispute resolution proceeding in which such Damages are claimed and to which the Insured submits with our consent.

V. **Your Product** means: (1) Any goods or products, other than real property, manufactured, sold, handled, distributed, or disposed of by: (a) you; (b) others trading under your name; or (c) a person or organization whose business or assets you have acquired; **and** (2) Containers (other than vehicles), materials, parts or equipment

furnished in connection with such goods or products. **Your Product** includes warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **Your Product**, and the providing of or failure to provide warnings or instructions in connection with it. **Your Product** does not include vending machines or other property rented to or located for the use of others but not sold.

W. **Your Work** means: (1) Work or operations performed by you or on your behalf; and (2) materials, parts or equipment furnished in connection with such work or operations. **Your Work** includes warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **Your Work**, and the providing of or failure to provide warnings or instructions in connection with it.

SECTION III: LIMITATIONS OF LIABILITY AND RETENTIONS

A. Limits of Liability

1. **Policy Limit of Liability**: The Policy Limit of Liability stated in the Declarations is the maximum amount we will pay under this Policy for all Loss covered by any insurance policies or coverage parts issued by us or any of our affiliates to any Insured. Coverage shall not be duplicated or stacked. Any amounts paid under one such policy or coverage part will reduce the limits available under any other policy or coverage part issued by us for the same Claim, Suit, Occurrence, loss, or expense. We may select which policy or coverage part will respond.

2. **General Aggregate Limit:** The General Aggregate Limit is the most we will pay for the sum of: (a) Damages under Coverage A (except Damages because of Bodily Injury or Property Damage included in the Products-Completed Operations Hazard); (b) Damages under Coverage B; and (c) Medical Expenses under Coverage C.

3. **Products-Completed Operations Aggregate Limit:** The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage A for Damages because of Bodily Injury or Property Damage included within the Products-Completed Operations Hazard.

4. **Personal and Advertising Injury Limit:** Subject to 2. above (General Aggregate Limit), the Personal and Advertising Injury Limit is the most we will pay under Coverage B for the sum of all Damages because of all Personal and Advertising Injury sustained by any one person or organization.

5. **Each Occurrence Limit:** Subject to 2. or 3. above (whichever applies), the Each Occurrence Limit is the most we will pay for the sum of: (a) Damages under Coverage A; and (b) Medical Expenses under Coverage C; arising out of any one Occurrence.

6. **Damage to Premises Rented To You Limit:** Subject to 5. above, the Damage To Premises Rented To You Limit is the most we will pay under Coverage A for Damages because of Property Damage to any one premises while rented to you, or (in the case of damage by fire) while rented to you or temporarily occupied by you with the owner's permission.

7. **Medical Expenses Limit:** Subject to 5. above, the Medical Expenses Limit is the most we will pay under Coverage C for all medical expenses because of Bodily Injury sustained by any one person.

The Limits of Liability of this Policy apply separately to each consecutive annual period and to any remaining period of less than 12 months in the Policy Period, unless the Policy Period is extended after issuance for an additional period less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of applying the Limits of Liability.

B. Retention

Our liability to pay any Loss under this Policy applies only to that part of **Loss** which is in excess of the Retention amount stated in the Declarations. The Retention shall be borne by you and shall remain uninsured. You are responsible for payment of the Retention for each Claim. If a single Occurrence or offense results in Claims that trigger more than one coverage (Coverage A, B, or C) under this Policy, only one Retention (the highest applicable Retention) shall apply to all Loss arising from that Occurrence or offense. In no event will we be obligated to pay any amounts (including Defense Costs or Damages) until the Retention has been satisfied by payments made by you. Payment of the Retention does not reduce the Limits of Liability available under this Policy. If any covered Loss within the Retention is paid on behalf of an Insured by a source other than you, such payment will reduce the Retention to the extent of that payment. However, payments made by us or on our behalf do not satisfy or reduce the Retention. If we advance any amounts that are within the Retention (with no obligation to do so), you agree to reimburse us for such amounts as soon as practicable. In the event you resolve any Claim for an amount within the applicable Retention, our consent to the settlement is not required, but you must promptly notify us of the settlement and its terms.

SECTION IV: EXCLUSIONS

The Insurer shall not be liable to pay any Loss, or to defend or continue to defend any Claim, in connection with any matter described below, regardless of whether any other cause or event contributes concurrently or in any sequence to such matter. **Some exclusions apply only to Coverage A or only to Coverage B, as noted. Other exclusions apply to all coverages.**

A. Exclusions Applicable to Coverage A – Bodily Injury and Property Damage Liability:

This insurance does not apply to **Bodily Injury** or **Property Damage** that any **Insured**, or any employee authorized to give or receive notice for the **Named Insured**, knew had occurred, in whole or in part, before the **Policy Period**. Injury or damage will be treated as known when such person: 1. gives notice to us or any insurer regarding the injury or damage, or 2. receives a demand or **Claim** for **Damages** because of it, or 3. otherwise becomes aware that injury or damage has taken place. Additional Exclusions include:

1. **Expected or Intended Injury:** Bodily Injury or Property Damage expected or intended from the standpoint of any Insured. However, this exclusion does not apply to Bodily Injury resulting from the use of reasonable force to protect persons or property.

2. **Contractual Liability:** Bodily Injury or Property Damage for which the Insured is obligated to pay Damages by reason of the assumption of liability in a contract or

agreement. **This exclusion does not apply** to liability for Damages: (a) that the Insured would have in the absence of the contract or agreement; or (b) assumed in a contract or agreement that is an **Insured Contract**, provided the Bodily Injury or Property Damage occurs after the execution of the contract or agreement. Solely for the purposes of liability assumed in an Insured Contract, reasonable attorneys' fees and necessary litigation expenses incurred by or for a third party (other than an Insured) are deemed to be Damages because of Bodily Injury or Property Damage, **provided that**: (i) the liability of the Insured to such third party for such fees and expenses is assumed in the same Insured Contract, and (ii) such attorneys' fees and litigation expenses are for defense of that third party against a civil or alternative dispute resolution proceeding in which Damages to which this insurance applies are alleged.

3. **Liquor Liability:** Bodily Injury or Property Damage for which any Insured may be held liable by reason of: (a) causing or contributing to the intoxication of any person; (b) furnishing alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or (c) any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages. This exclusion applies even if the Claims allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by an Insured, or providing or failing to provide transportation to any person under the influence of alcohol. **However, this exclusion applies only if** the Insured is in the business of manufacturing, distributing, selling, serving, or furnishing alcoholic beverages. (The mere permitting of alcohol at your premises for consumption is not by itself considered "the business" of selling or furnishing alcoholic beverages.)

4. **Workers' Compensation and Similar Laws:** Any obligation of the Insured under a workers' compensation, disability benefits, unemployment compensation, or similar law.

5. **Weapons:** This insurance does not apply to any Claim, Suit, Bodily Injury, Property Damage, or Personal and Advertising Injury arising out of, resulting from, or in any way related to the ownership, manufacture, import, export, sale, distribution, transfer, gift, loan, licensing, entrustment, maintenance, repair, assembly, testing, display, storage, transportation, or disposal of any firearm, ammunition, explosive, or weapon, including any parts, components, attachments, or accessories. This exclusion applies to all theories of liability, including negligence, strict liability, nuisance, and statutory violations.

6. **Employer's Liability:** Bodily Injury to: (a) an Employee of the Insured arising out of and in the course of employment by the Insured, or performing duties related to the conduct of the Insured's business; or (b) the spouse, child, parent, brother or sister of that Employee as a consequence of the injury in (a) above. This exclusion applies whether the Insured may be liable as an employer or in any other capacity, and whether the liability is direct or vicarious (for example, to share damages with or repay someone else who must pay damages to the injured person). **This exclusion does not apply** to liability assumed by the Insured under an **Insured Contract**.

7. **Pollution:** Bodily Injury or Property Damage arising out of the actual, alleged, or threatened discharge, dispersal, seepage, migration, release, or escape of **Pollutants**:

a. At or from any premises, site or location that is or was at any time owned or occupied by, or rented or loaned to, any Insured. **However, subparagraph (a) of this exclusion does not apply to:** Bodily Injury sustained within a building and caused by smoke, fumes, vapor or soot from equipment used to heat, cool or dehumidify that building, or equipment used to heat water for personal use by the building's occupants or their guests; **nor does it apply to** Bodily Injury or Property Damage for which the Insured may be held liable, if the Insured is a contractor and the owner or lessee of such premises, site or location has been added as an additional insured on this Policy with respect to the Insured's ongoing operations at that premises, site or location (and such premises is not and was never owned or occupied by, or rented or loaned to, any Insured other than that additional insured); **nor does it apply to** Bodily Injury or Property Damage arising out of heat, smoke or fumes from a **Hostile Fire**.

b. At or from any premises, site or location which is or was at any time used by or for any Insured or others for the handling, storage, disposal, processing or treatment of waste.

c. Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for: (i) any Insured; or (ii) any person or organization for whom the Insured may be legally responsible.

d. At or from any premises, site or location on which any Insured or any contractors or subcontractors working directly or indirectly on any Insured's behalf are performing operations if the Pollutants are brought on or to the premises, site or location in connection with such operations by such Insured, contractor or subcontractor. **However, subparagraph (d) of this exclusion does not apply to:** Bodily Injury or Property Damage arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal functions of **Worksite Equipment**, if such fluids escape from a vehicle part designed to hold them (provided the escape of such fluids is accidental and not caused by intentional discharge or improper maintenance); **nor does it apply to** Bodily Injury or Property Damage arising out of heat, smoke or fumes from a Hostile Fire.

e. At or from any premises, site or location on which any Insured or any contractors or subcontractors working directly or indirectly on any Insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to or assess the effects of, Pollutants.
(For the purposes of this exclusion, the term Pollutants means any irritants or contaminants as defined in Section II above. A Hostile Fire means one which becomes uncontrollable or escapes from its intended confines.)

8. **Aircraft, Auto or Watercraft:** Bodily Injury or Property Damage arising out of the ownership, maintenance, operation, use, **loading or unloading** or entrustment to others of any aircraft, **Auto** or watercraft by any Insured or on any Insured's behalf. This exclusion applies even if the Claims against any Insured allege

negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by that Insured. **This exclusion does not apply to:** (a) a watercraft while ashore on premises you own or rent; (b) a watercraft you do not own that is less than 26 feet long and not being used to carry persons or property for a charge; (c) parking of an **Auto** on or next to premises you own or rent, provided the Auto is not owned by or rented or loaned to you or the driver (this exception applies only to liability caused by the parking of the Auto, and not to physical damage to the Auto itself); (d) liability assumed under any Insured Contract for the ownership, maintenance or use of aircraft or watercraft; or (e) Bodily Injury or Property Damage arising out of the operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of **Worksite Equipment** if it were not subject to compulsory motor vehicle insurance laws. For the purposes of this exclusion, **Aircraft** includes any **Unmanned Aircraft**, drone, remotely piloted aircraft system, or similar device, including any equipment, payload, or component attached thereto.

9. **Worksite Equipment:** Bodily Injury or Property Damage arising out of: (a) the transportation of **Worksite Equipment** by an **Auto** owned or operated by or rented or loaned to any Insured; or (b) the use of **Worksite Equipment** in, or while in practice or preparation for, any prearranged racing, speed, demolition, or stunting activity.

10. **War:** Bodily Injury or Property Damage arising directly or indirectly out of war, civil war, revolution, insurrection, rebellion, or any warlike action by a military force or other agent (including action in hindering or defending against any of these).

11. **Damage to Property:** Property Damage to:

    a. property you own, rent, or occupy;

    b. premises you sell, give away or abandon, if the Property Damage arises out of any part of those premises;

    c. property loaned to you;

    d. personal property in the care, custody or control of any Insured;

    e. that particular part of real property on which you or any contractors or subcontractors working on your behalf are performing operations, if the Property Damage arises out of those operations; or

    f. that particular part of any property that must be restored, repaired or replaced because **Your Work** was incorrectly performed on it. **However, this exclusion does not apply** to: (i) Property Damage (other than by fire) to premises, including the contents of such premises, rented to you for a period of seven (7) or fewer consecutive days. (For damage to premises rented for longer periods, or damage by fire, see the **Damage To Premises Rented To You** Limit in Section III above); or (ii) Property Damage to premises you have sold, given away or abandoned, if the premises are **Your Work** and were never occupied, rented or held for rental by you.

Further, subparagraph (f) of this exclusion does not apply to Property Damage to other property arising out of sudden and accidental physical injury to **Your Work** after it has been put to its intended use.

Paragraphs (1) through (5) do not apply to **Property Damage** by fire to premises while rented to you or temporarily occupied by you with the owner's permission. The **Damage To Premises Rented To You Limit** applies.

12. **Damage to Your Product:** Property Damage to **Your Product** arising out of or resulting from **Your Product** itself, or any part of it.

13. **Damage to Your Work:** Property Damage to **Your Work** arising out of it or any part of it and included in the **Products-Completed Operations Hazard**. **However, this exclusion does not apply** if the damaged work, or the work out of which the damage arises, was performed on your behalf by a subcontractor.

14. **Damage to Impaired Property or Property Not Physically Injured:** Property Damage to **Impaired Property** or property that has not been physically injured, arising out of: (a) a defect, deficiency, inadequacy or dangerous condition in **Your Product** or **Your Work**; or (b) a delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

15. **Recall of Products, Work or Impaired Property:** Any loss, cost or expense incurred by or on behalf of any Insured or others for the withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of: (a) **Your Product**; (b) **Your Work**; or (c) **Impaired Property**; if such product, work or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

16. **Personal and Advertising Injury:** Bodily Injury or Property Damage arising out of **Personal and Advertising Injury** (as defined in Section II) committed by or at the direction of any Insured.

17. **Electronic Data:** Bodily Injury or Property Damage arising out of loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data** (electronic data is defined in Section II under Property Damage).

18. **Recording and Distribution of Material or Information in Violation of Law:** Bodily Injury or Property Damage arising directly or indirectly out of any action or omission that violates or is alleged to violate: (a) the Telephone Consumer Protection Act (TCPA), including any amendment or addition to such law; (b) the CAN-SPAM Act of 2003 (Controlling the Assault of Non-Solicited Pornography and Marketing), including any amendment or addition to such law; (c) the Fair Credit Reporting Act (FCRA) and any Fair and Accurate Credit Transactions Act (FACTA) amendment, including any amendment or addition to such law; or (d) any federal, state or local statute, ordinance or regulation (other than the U.S. antitrust laws and federal securities laws, which are addressed elsewhere if applicable) that addresses, prohibits or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

B. Exclusions Applicable to Coverage B – Personal and Advertising Injury Liability:

Coverage B does not apply to Personal and Advertising Injury caused by an offense that was first committed before the beginning of the Policy Period. All **Personal and Advertising Injury** arising from the same or related offense will be treated as a single offense to which one **Policy Period** applies. Additional Exclusions include:

1. **Knowing Violation of Rights of Another:** Personal and Advertising Injury caused by or at the direction of the Insured with the knowledge that the act would violate the rights of another and would inflict injury.

2. **Material Published With Knowledge of Falsity:** Personal and Advertising Injury arising out of oral or written publication, in any manner, of material by or at the direction of the Insured, if done with knowledge of its falsity.

3. **Material Published Prior to Policy Period:** Personal and Advertising Injury arising out of oral or written publication, in any manner, of material whose first publication took place before the beginning of the Policy Period.

4. **Criminal Acts:** Personal and Advertising Injury arising out of a criminal act committed by or at the direction of any Insured.

5. **Contractual Liability:** Personal and Advertising Injury for which the Insured has assumed liability in a contract or agreement. **This exclusion does not apply** to liability for damages that the Insured would have in the absence of the contract or agreement.

6. **Breach of Contract:** Personal and Advertising Injury arising out of a breach of contract, except an implied contract to use another's advertising idea in your Advertisement.

7. **Quality or Performance of Goods – Failure to Conform to Statements:** Personal and Advertising Injury arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your Advertisement.

8. **Wrong Description of Prices:** Personal and Advertising Injury arising out of the wrong description of the price of goods, products or services stated in your Advertisement.

9. **Infringement of Intellectual Property:** Personal and Advertising Injury arising out of any actual or alleged infringement or violation of copyright, patent, trademark, trade secret, trade dress, service mark, or other intellectual property rights. **However, this exclusion does not apply** to infringement of copyright, trade dress or slogan in your Advertisement, to the extent that such act otherwise falls within the "Personal and Advertising Injury" offenses covered by this Policy.

10. **Insureds in Media and Internet Type Businesses:** Personal and Advertising Injury committed by an Insured whose business is advertising, broadcasting, publishing or telecasting, or whose business involves designing or determining content of websites for others, or providing Internet search, access, content or service. This exclusion applies to Personal and Advertising Injury arising out of the Insured's rendering of or failure to render specialized media and internet

services in the course of that business. **However, this exclusion does not apply** to any Claim arising from the offenses defined in paragraphs 1, 2 or 3 of Personal and Advertising Injury (false arrest, malicious prosecution, wrongful eviction) committed by such Insured.

11. **Electronic Chatrooms or Bulletin Boards:** Personal and Advertising Injury arising out of an electronic chatroom or bulletin board that the Insured hosts, owns, or exercises control over.

12. **Unauthorized Use of Another's Name or Product:** Personal and Advertising Injury arising out of the unauthorized use of another's name or product in an e-mail address, domain name, metatag, keyword or other similar tactics aimed at misleading another's potential customers.

13. **War:** Personal and Advertising Injury arising directly or indirectly out of war, civil war, revolution, insurrection, rebellion, or any warlike action by a military force or other agent (including action in hindering or defending against any of these).

14. **Recording and Distribution of Material or Information in Violation of Law:** Personal and Advertising Injury arising directly or indirectly out of any action or omission that violates or is alleged to violate: the TCPA, CAN-SPAM Act of 2003, FCRA (including FACTA), or any federal, state or local statute, ordinance or regulation (other than U.S. antitrust laws and federal securities laws) that prohibits or limits the sending, transmitting, communicating or distribution of material or information.

C. **Exclusions Applicable to Coverage C – Medical Expenses Liability:**

No payment is made: to any **Insured**; to any person hired by any Insured or by any Insured's tenant; to a person injured on that part of premises the person normally occupies; where benefits are payable under workers' compensation, disability, or similar law; to anyone injured while practicing or taking part in physical exercise, games, sports, or athletic contests; for **Bodily Injury** included in the **Products-Completed Operations Hazard**; or for any injury that would be excluded under **Coverage A**.

D. Exclusions Applicable to All Coverages (Coverage A, B, and C):

1. **Nuclear Liability:** Any loss, injury, damage or legal obligation arising out of the hazardous properties of nuclear material, including but not limited to nuclear reaction, radiation, or radioactive contamination, at any time. This exclusion applies to any obligation of the Insured to share damages with or repay someone else who must pay damages related to nuclear material. (This exclusion does not apply to radioactive isotopes of gold or other materials at levels that are commercially distributed and used for medical or technical research purposes.)

2. **Asbestos and Lead:** Any Claim based upon or arising out of the actual or alleged inhalation of, ingestion of, contact with, exposure to, existence of, or presence of asbestos or lead in any form, or any obligation of the Insured to indemnify any party because of such claims, or to share damages with or repay someone else who must pay damages related to such matters.

3. **Professional Services:** Any Claim arising out of the rendering of or failure to render professional services by the Insured, including but not limited to any health care, legal, accounting, architectural, engineering, consulting, or insurance services, or any advice, instruction, design, or plan provided as part of such services. (This exclusion does not apply to claims for Bodily Injury arising out of the providing of or failure to provide first aid or other emergency medical services by an Employee of the Insured.)

4. **Employment-Related Practices:** Any Claim for Bodily Injury or Personal and Advertising Injury to: (a) a person arising out of any employment-related practice, policy, act or omission (such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination, termination, or malicious prosecution, or inappropriate employment hiring or promotion decisions); or (b) the spouse, child, parent, brother, sister or other relative of that person as a consequence of injury to the person at whom any of the employment-related practices described above is directed. This exclusion applies whether the Insured may be held liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

5. **Fraud and Intentional Acts:** Any Claim arising out of any fraudulent, dishonest, criminal or malicious act, error or omission, or willful violation of law by an Insured. However, this exclusion will not apply to any Insured who did not commit, acquiesce in, or remain passive after having knowledge of, such conduct, as long as the Claim is not otherwise excluded and coverage is not prohibited by law.

6. **Fines, Penalties, and Uninsurable Matters:** Any fines, penalties, punitive or exemplary damages, taxes, or the multiplied portion of any multiple damages award, or other matters deemed uninsurable under the law pursuant to which this Policy is construed. (If a Claim includes both compensatory Damages and such non-compensatory amounts, we will not cover the non-compensatory amounts.)

7. **Other Insurance – Products/Completed Operations Outside USA:** Any Products-Completed Operations Hazard Claim that is covered by any other valid and collectible insurance available to the Insured. (For example, if this Policy is issued to cover U.S. exposures and the Insured has a separate foreign liability policy for products claims outside the U.S., this Policy will not apply to such claims.)

If any exclusion in this Section IV applies to a portion of a Claim, Loss for that portion is not covered. We will, however, provide defense coverage for any other portions of the Claim that are not excluded, subject to all terms and conditions of this Policy. The inclusion of more than one Insured in any Claim shall not operate to increase our Limit of Liability.

SECTION V: NOTICES AND CONDITIONS

A. **Change in Control**: The **Named Insured** must provide us with written notice as soon as practicable, but no later than thirty (30) days after any Change in Control. Such notice must include the date and nature of the transaction and any information we reasonably request for underwriting and evaluation. Upon a Change in Control, coverage under this

Policy for Bodily Injury, Property Damage, or Personal and Advertising Injury that occurs or is committed on or after the effective date of the Change in Control will continue only with our prior written consent, which may be conditioned upon additional premium, revised limits, retentions, exclusions, or other terms we require. Absent our written consent, this Policy applies only to Occurrences or offenses that take place before the effective date of the Change in Control.

B. **Bankruptcy:** Bankruptcy or insolvency of the Insured (or of the Insured's estate) shall not relieve us of our obligations under this Policy.

C. **Duties in the Event of Occurrence, Offense, Claim or Suit:** As a condition precedent to coverage under this Policy, the Insured must give us prompt written notice of any **Occurrence** or offense which may result in a Claim. Notice should include the time, place and circumstances of the Occurrence or offense, and the names and addresses of any injured persons and witnesses. If a **Claim** is made or a **suit** is brought against any Insured, the Insured must notify us in writing as soon as practicable, and see to it that we receive copies of any demands, notices, summonses or legal papers as soon as practicable. Each Insured must cooperate with us in the investigation, defense and settlement of any Claim and in enforcing any right of contribution or indemnity against any person or entity who may be liable to an Insured for the loss. No Insured shall, except at that Insured's own cost, voluntarily make any payment, assume any obligation, or incur any expense without our prior consent, other than expenses for immediate first aid to others at the time of an accident.

D. **Other Insurance:** If other valid and collectible insurance is available to the Insured for a loss we cover under Coverages A or B of this Policy (whether such insurance is stated to be primary, contributing, excess or contingent), our obligations are limited as follows:

   a. **Primary Insurance:** This insurance is primary, except when paragraph b. below applies. If this insurance is primary, and the Insured has other insurance which is also primary, we will share with that other insurance as described in c. below.

   b. **Excess Insurance:** This insurance shall be excess over (i) any Fire, Extended Coverage, Builder's Risk, Installation Floater or similar property insurance covering the Insured's work or property; (ii) any fire, lightning or explosion insurance covering premises rented to the Insured or temporarily occupied by the Insured; (iii) any insurance purchased by the Insured to cover its liability as a tenant for Property Damage to premises rented or temporarily occupied by the Insured; (iv) any other primary insurance available to the Insured covering liability for damages arising out of premises or operations for which the Insured has been added as an additional insured on another policy; and (v) any valid and collectible primary insurance covering liability arising out of the maintenance or use of aircraft, Autos or watercraft, to the extent not subject to the Aircraft/Auto/Watercraft exclusion under Coverage A of this Policy. When this insurance is excess, we will have no duty to defend the Insured against any suit or Claim if any other insurer has a duty to defend the Insured against that suit or Claim. If no other insurer defends, we will undertake to do so, but we shall be entitled to the Insured's rights against all such other insurers. When this insurance is excess over other insurance, we will pay only our share of the amount of loss (if any) that exceeds the sum of: (1) the total amount that all such other insurance would pay for the loss in the absence of this insurance, and (2) the total of all self-insured amounts under all such other insurance. We will share

the remaining loss, if any, with any other insurance that is not described in this paragraph b.(i)-(v) and was not bought specifically to apply in excess of the Limits of Liability shown in the Declarations of this Policy.

c. **Method of Sharing:** If all of the other insurance available to the Insured permits contribution by equal shares, we will follow that method also. Under this approach, each insurer contributes equal amounts until it has paid its applicable limit of insurance or the loss is fully paid, whichever comes first. If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

E. **Premium Audit:** If this Policy is subject to audit (as indicated in the Declarations or by endorsement), the premium for Policy(s) shown as auditable is a deposit premium only. We will compute the final premium for each audit period based on our rules and rates and the actual exposures (such as sales or payroll) that occurred during that period. If the earned premium is more than the deposit premium paid, the Named Insured will be responsible for the difference (subject to any minimum premium); if less, we will return the difference to the Named Insured. The Named Insured must keep records of the information we need for premium calculation and send us copies of such records upon request.

F. **Representations By Insured:** By accepting this Policy, the Named Insured agrees that: (a) the statements in the Declarations, Application and any supplemental materials are true, accurate and complete; (b) those statements are based upon representations made to us by the Insured; and (c) we have issued this Policy in reliance upon the Insured's representations. This Policy is void in any case of material misrepresentation, concealment or fraud by the Insured as it relates to this insurance.

G. **Separation of Insureds, Named Insured Provisions:** Except with respect to the Limits of Liability (and any rights or duties specifically assigned to the first Named Insured), this insurance applies as if each Named Insured were the only Named Insured, and separately to each Insured against whom a Claim is made or suit is brought. The Named Insured specified in the Declarations is authorized to act on behalf of all Insureds with respect to giving and receiving notice of cancellation or nonrenewal, paying premiums and receiving any return premiums, and accepting endorsements to this Policy.

H. **Transfer of Rights of Recovery (Subrogation):** If the Insured has rights to recover all or part of any payment we have made under this Policy, those rights are transferred to us. The Insured must do nothing after a loss to impair those rights and must help us execute any papers and take any reasonable action necessary to secure our rights. However, we waive any right of recovery against any person or organization if, prior to the Bodily Injury or Property Damage, the Insured had agreed in a written contract to waive such rights of recovery against that person or organization.

I. **Changes:** Notice to any agent or knowledge possessed by any agent or other person acting on our behalf shall not effect a waiver or change in any part of this Policy or estop us from asserting any right under the terms of this Policy. The provisions of this Policy shall not be waived, changed or modified, except by a written endorsement issued to form a part of this Policy.

J. **Cancellation and Nonrenewal**

a. **Cancellation**

i. We may cancel this Policy:

1. For nonpayment of premium by mailing or delivering written notice of cancellation to the first Named Insured at the mailing address shown in the Declarations at least 10 days before the effective date of cancellation.

2. For any other reason permitted by applicable law by mailing or delivering written notice of cancellation to the first Named Insured at least 30 days before the effective date of cancellation.

ii. The mailing of notice shall be sufficient proof of notice. Notice to the first Named Insured shall be notice to all Insureds.

iii. If we cancel, earned premium shall be computed pro rata unless a different calculation is required by law. If you cancel, earned premium shall be computed at the short-rate basis unless a different calculation is required by law.

b. **Nonrenewal**

If we elect not to renew this Policy, we will mail or deliver written notice of nonrenewal to the first Named Insured at least 30 days before the expiration date, or any longer period required by law. The mailing of notice shall be sufficient proof of notice.

K. **Conformance to Statute:** Any terms of this Policy which are in conflict with the statutes of the state where the Policy is issued are hereby amended to conform to such statutes.

L. **Titles of Paragraphs:** The titles or headings of sections, provisions, or paragraphs of this Policy are intended for reference only and are not to be considered in interpreting this insurance contract.

M. **Entire Agreement:** By acceptance of this Policy, the Insured and the Company agree that this Policy (including the Declarations, Application, and any endorsements or schedules attached hereto) constitutes the entire agreement between the parties pertaining to the insurance provided hereunder. No agent or representative of the Company has authority to make any changes to this Policy unless expressly authorized by the Company. This Policy is issued as part of the Technology Risk Retention Group, Inc. insurance policy program, and it is subject to the applicable General Terms, Conditions, Limitations, and Exclusions of that program unless specifically amended herein.